

NCAT Application — Consumer and Commercial Division

Matter No: NCAT-TEST-2026/00001 (fictional reference)
Applicant: David Park (tenant) | Respondent: [Landlord] (example only)
Date filed: 1 July 2026

Nature of claim: Damages for investment losses arising from the landlord's alleged failure to disclose that the property lacked approvals required for the tenant's disclosed business use.

Summary of facts relied on: The applicant entered into a residential tenancy agreement on 1 March 2026, disclosing an intention to operate a home-based business. The applicant subsequently incorporated a company and invested in fit-out and equipment. On 2 June 2026, Example Council refused a permit application on the basis that the property held only a Development Approval, with no further approval for the disclosed use. This was confirmed by a GIPA response dated 25 June 2026.

Orders sought: Damages in the amount to be particularised, representing the applicant's investment losses.

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